

		Lastly, for lack of informed consent, Defendants seek records of prior surgical consent, informed-consent, and risk-disclosure which may show what risks Plaintiff was informed of, what risks she accepted, whether she had prior experience with comparable procedures or complications, and whether she previously consented to elective procedures despite disclosed risks. Defendants show that such records would be directly relevant to a defense to Plaintiff’s claim for lack of informed consent. However, such records are limited as follows: Plaintiff’s medical records, billing records, and x-rays from Keck Medicine relating to prior elective surgical procedures for the time period of January 1, 2019, to the present. Based on the foregoing, the motion to quash is GRANTED as to all medical, billing, and x-ray records from Keck Medicine and pharmacy/prescription records from CVS Pharmacy for Plaintiff <i>except</i> as the following: • Medical, billing, and x-ray records relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes, eyelids, and orbit from September 2024, to the present; • Pharmacy and prescription records from CVS Pharmacy related to medical care and conditions relating to Plaintiff’s eyes, eyelids, and orbit from September 2024, to the present; and • Plaintiff’s medical records, billing records, and x-rays from Keck Medicine relating to prior elective surgical procedures only for the time period of January 1, 2021, to the present. Plaintiff’s request for a monetary sanction is DENIED. Plaintiff to give notice.
8.	30-2025-01535433 BCAL Construction Inc vs. LA Clinique Moliere Birthplace and Woman’s Wellness, Inc	1. Case Management Conference 2. Motion to Deem Facts Admitted 3. Status Conference re: ADR Plaintiff BCal Construction Inc. (“Plaintiff”) moves for an order (1) deeming the truth of all matters specified in Plaintiff’s first set of Requests for Admission as admitted; and (2) imposing monetary sanctions on Defendant La Clinique Moliere Birthplace and Women’s Wellness, Inc. (“Defendant”). Code of Civil Procedure section 2033.280(b) provides that, when a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010).” Subdivision (c) provides that the Court shall make this order, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” Here, Defendant served substantially compliant responses prior to the hearing. (Ferguson Decl., ¶ 5, Exh. A.) The motion is therefore MOOT as to deeming matters admitted.

		As to sanctions, CCP §2033.280(c) provides that “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Accordingly, the Court GRANTS Plaintiff monetary sanctions against Defendant La Clinique Moliere Birthplace and Women’s Wellness, Inc. in the reduced amount of \$285 (1.5 hrs at \$150/hr + \$60 filing fee). Sanctions are due and payable to Plaintiff’s counsel <u>within 30 days</u> of notice of this order. Plaintiff to give notice.
9.	30-2024-01412477 Sanchez vs. Mehdi	1. Motion to Compel Deposition (Oral or Written) Plaintiff, Jessica Marlene Sanchez Monterroso, moves for an order: (1) compelling Defendant Derma Noor, Inc. d/b/a Derma Noor Medical Spa (“Derma Noor”) to designate one or more properly prepared Persons Most Knowledgeable to provide complete testimony on all 30 categories identified in the Second Amended Notice of Taking Deposition of Derma Noor’s Person Most Knowledgeable (“PMK”) (the “Second Amended Notice”) and to appear for a continued deposition within 14 days of the Court’s order; (2) compelling Derma Noor to produce all documents requested in the 38 categories identified in the Second Amended Notice at least three (3) calendar days prior to the continued deposition date; (3) awarding monetary sanctions against Derma Noor, and/or its counsel of record, in favor of Plaintiff in the amount of \$3,500 to compensate Plaintiff for expenses and attorney’s fees in bringing this motion; and (4) awarding monetary sanctions against Derma Noor, and/or its counsel of record, in favor of Plaintiff in the amount of \$2,961.90 to compensate Plaintiff for reasonable expenses associated with the PMK deposition that occurred on December 4, 2025. The Motion is DENIED. Initially, no proof of service of the instant motion to compel appears in the Court’s file. More importantly, the motion is untimely. Code of Civil Procedure section 2025.480(a) provides: “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Code of Civil Procedure section 2025.480(b) states, in relevant part: “[t]his motion [motion to compel answers or produce documents at a deposition] shall be made no later than 60 days after the completion of the record of the deposition” The 60-day deadline is mandatory. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) In footnote 3, the Court of Appeal additionally stated, “[p]rejudice is not required; discovery deadlines are mandatory and we have treated them as jurisdictional. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410, 68 Cal.Rptr.2d 708), even though a trial court may grant relief from deadlines to file motions to compel. Where a party does not obtain trial court relief from the statutory deadline, ‘failure to move for further answers within the statutory time forecloses further relief’ (<i>O’Brien v. Superior Court</i> (1965) 233 Cal.App.2d 388, 391.)” (<i>Id.</i> at p. 322, fn. 3.) Footnote 3 cites to <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, which explained that the deadline is jurisdictional insofar as it renders the court without authority to rule on motions to compel other than to deny them. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.)